

**UNITED STATES INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.**

**Before the Honorable Doris Johnson Hines
Administrative Law Judge**

In the Matter of:

CERTAIN WEARABLE DEVICES

Investigation No. 337-TA-1478

**RESPONDENTS' OPPOSITION TO SAMSUNG'S MOTION *IN LIMINE* NO. 2
(EDIS Doc. ID 892515, Mot. No. 1478-013)**



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[REDACTED]

I. INTRODUCTION

Respondents Ouraring Inc. and Oura Health Oy (collectively, “Oura”) hereby oppose Samsung’s Motion *in Limine* No. 2 concerning Oura’s contention that Samsung’s infringement theory for the ’675 and ’677 Patents cannot satisfy Samsung’s burden of proof. Oura will not be putting forth testimony from its own witnesses that the Accused Products do not meet the inactivation limitations of the asserted claims, but rather—as Oura’s prehearing brief makes clear—Oura seeks only to cross-examine Samsung’s expert to show that his theory of infringement cannot satisfy Samsung’s burden of proof with regard to infringement. Oura has long contended that Samsung cannot carry its burden of proof, and Samsung’s attempt to shield its expert from any cross-examination whatsoever on this point should be denied.

II. ARGUMENT

A. *Oura will only present a burden-of-proof argument on the basis of the optical sensor continuing to operate*

Oura will seek to prove at the evidentiary hearing that Samsung cannot carry its burden of proof with respect to infringement of the ’675 and ’677 Patents because the inactivation limitations of the claims are not met when the optical sensor of the rings (which measures both SpO₂ and heart rate) continues emitting light to measure heart rate:

Samsung will not be able to show that the Oura Gen. 4 ring “inactivat[es] the at least one second sensor” in response “identifying that the motion of the electronic device included in the second information is more than a threshold motion,” as required by claim element [13.f]. *As Dr. Welch must admit upon cross-examination,*

[REDACTED]

[REDACTED]

See Oura's Prehearing Brief (EDIS Doc. ID 891067; "RPreHB") at 20 (concerning the '675 Patent) (emphasis added), 54-55 (substantially the same arguments for the '677 Patent).

As Samsung has acknowledged, Oura has always pursued a failure-of-proof path to showing noninfringement of the '675 and '677 Patents. See Samsung's MIL at 3. Oura recognizes that such an approach precludes it from putting forth an expert opinion regarding the sensors and having its expert opine on noninfringement at trial, and Oura will not exceed this limitation. But Oura should be able to follow its contentions and show that Samsung's expert witness (Dr. Welch) cannot carry Samsung's burden of proof, including by getting Dr. Welch to admit facts that show that his theory of infringement is not valid. Here, one basis on which Oura will attempt to do this is by getting Dr. Welch to admit [REDACTED]

[REDACTED]

This is not dissimilar to any other way in which Samsung may fail to meet their burden of proof. Should, say, Samsung's expert badly contradict himself of the stand, or entirely fail to address a claim limitation, Samsung still bears the burden of proof and cannot preclude a challenge on this basis simply because Oura did not affirmatively put forth counter-contentions. Here, the main difference is that Oura has been abundantly transparent before the hearing about the burden-of-proof argument that it will pursue by cross-examination.

B. Samsung's own infringement contentions were unclear

It must also be noted that it was not until after the contention deadline had passed that Samsung clarified (through its expert report) that it was pursuing a theory whereby [REDACTED]

[REDACTED]

[REDACTED] Samsung did not identify any specific state transitions that would have allowed Oura to understand the specific transitions that Samsung would later rely on. See, e.g., Ex. 1 (Exhibit 3 to Samsung's final infringement

[REDACTED]

contentions) at 63 ('675 Patent); Ex. 2 (Exhibit 2 to Samsung's final infringement contentions) at 71, 173-74 ('677 Patent).

In response to Samsung, Oura contended broadly that it would rely on a burden of proof defense because of the lack of clarity in Samsung's allegations:

Moreover, Samsung contention is ambiguous and deficient by failing to state clearly [REDACTED] [REDACTED] Samsung cites to website links, technical documents, and source code, but Samsung does not identify, with specificity, how this evidence purports to show how the Accused Product meets this limitation. For example, Samsung cites to 20 source code files but does not explain, with specificity, how the source code files support its claim that the Accused Product meets this limitation. See Ex. 3, '675 Patent Claim Chart at 63-64. Rather, Samsung's allegations appear to be based solely on information and belief.

See Ex. D at 132-33; see also *id.* at 106, 115 (substantially the same arguments for the '677 Patent).

Now that Samsung's expert has narrowed the contentions to focus on the [REDACTED] [REDACTED] (see, e.g., Samsung's prehearing brief (EDIS Doc. ID 891086) at 22), Oura intends to show that this particular theory does not meet Samsung's burden of proof because [REDACTED]

[REDACTED]¹

C. Samsung has not been prejudiced

Finally, Samsung has not been prejudiced by Oura limiting its attack to cross examination.

Hypothetically, had Oura set forth this specific reason that Samsung cannot carry its burden of proof earlier, Samsung's expert Dr. Welch could have addressed this in his expert infringement report (and Oura could have responded). But now, Samsung has been well-warned that such

¹ This is not an argument that Oura could have made [REDACTED] but this is Oura's invalidity theory based on the Gen. 1 ring, presumably explaining why Samsung did not pursue this theory.

questions are coming, and Dr. Welch will be able to state his opinion in response to questions on cross-examination without response from Oura's own expert. Samsung will not be deprived of the chance to make any argument, and the Court should hear Dr. Welch's responses in this regard before evaluating for itself whether Samsung has shown that infringement has occurred.

III. CONCLUSION

As Oura has long contended, Samsung cannot carry its burden of proof to show infringement of the '675 and '677 Patents. In view of the infringement theory that Samsung has pursued, Oura anticipates that Samsung's inability to meet its burden of proof will be shown by cross examination of Samsung's expert, and the ability of Oura to at least ask such questions should not be precluded. The Court should be able to hear Dr. Welch's response, and thus for the reasons herein, Samsung's second motion *in limine* should be denied in full.

Dated: September 2, 2026

Respectfully submitted,

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EXHIBITS 1-2
REDACTED IN ENTIRETY

CERTIFICATE OF SERVICE

I hereby certify that a copy of the foregoing **RESPONDENTS' OPPOSITION TO SAMSUNG'S MOTION IN LIMINE NO. 2 (EDIS DOC. ID 892515)** was served upon the following as indicated below on September 2, 2026:

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I hereby certify that a copy of the foregoing **PUBLIC VERSION OF RESPONDENTS' OPPOSITION TO SAMSUNG'S MOTION *IN LIMINE* NO. 2** was served upon the following as indicated below on September 10, 2026:

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